

Defendants argue that this claim fails because it sounds in negligence and there is no liability for public entities for negligence in the absence of a special relationship between the plaintiff and the public entity. (Demurrer, pp. 14-15.)

Plaintiff argues that Defendants did not establish that a public entity's omission to do something it voluntarily agreed to cannot support a gratuitous undertaking theory and that requiring the facility to provide confirmation of insurance coverage within seven days of the annual site inspection created a duty to ensure proof was given. (Opposition, p. 4.)

On reply, Defendants argue that this claim is unsupported by any legal authority and that it sounds in negligence but is unsupported by any statute. (Reply, p. 6.) Defendants argue that Plaintiff has not shown how Defendants agreed to voluntarily undertake to ensure that licensees have insurance.

In *Morgan v. County of Yuba* (1964) 230 Cal.App.2d 938, the court addressed a claim of gratuitous undertaking against a county based on allegations that a sheriff informed a woman that he would notify her if a person they arrested got out on bail—the sheriff did not do this and the woman was murdered. (*Id.* at p. 941.) In an action by the woman's children, the court held that "We have shown above that reliance upon the promise is a necessary element of the cause of action and in the case at bench reliance has not been pleaded. It is not alleged that the promise made created an expectation of fulfillment; nor is it alleged that but for such reliance and expectation, plaintiffs could and would have taken appropriate measures themselves against Ashby's threatened assault." (*Id.* at p. 945.)

Here, Plaintiff similarly has alleged no promise of Defendants to Plaintiff relating to the insurance requirement and has not shown any special relationship between Plaintiff and Defendants. The transaction between Walnut Creek Willows and Defendants cannot be construed to be a promise by Defendants to Plaintiff.

The Court **sustains** the demurrer to the second cause of action for gratuitous undertaking.

Ruling

Based on the analysis above, the Court **OVERRULES** Defendants' demurrer based on failure to make a timely government claim and **SUSTAINS** the demurrer to the first and second causes of action for failure to state facts sufficient to constitute a cause of action. Plaintiff may file and serve a second amended complaint within 15 days of notice of entry of this order. (Code Civ. Proc. § 472b; CRC, rule 3.1320(g).)

17. 9:00 AM CASE NUMBER: C25-02567
CASE NAME: ABDUL LATIFI VS. SAMMAH ENTERPRISE INC,
BE RELIEVED AS COUNSEL FOR PLTF
FILED BY:
TENTATIVE RULING:
See Line 14.